

Deepak Kumar v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 2 November 2021 · Writ - C No. 25143 of 2021 · **Writ disposed of; Executive Engineer directed to decide the pending Clause 6.5 representation by a reasoned order within three weeks.**

HEADNOTE

A Division Bench disposed of a tube-well restoration writ without granting reconnection on merits, directing the Executive Engineer to consider and dispose of the petitioner's pending representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 by a reasoned and speaking order within three weeks of a copy of the order being filed.

FACTUAL SUMMARY

The dispute concerned a personal tube-well electricity connection standing in the petitioner's grandfather's name. An earlier writ by the petitioner's uncle (Writ-C No. 37324 of 2019) had been dismissed with the observation that bill correction must be sought from the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Alleging that a subsequent representation remained undecided, the petitioner sought mandamus to restore the connection and to have the Clause 6.5 representation decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending Clause 6.5 representation — time-bound disposal

HOLDING

Where a consumer has already made a representation to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for bill correction, following an earlier writ that relegated bill correction to that forum, the High Court will not restore a disconnected tube-well connection on merits and will instead dispose of the writ by directing the Executive Engineer to consider and dispose of that representation by a reasoned and speaking order within a fixed time.

¶ 1

PRINCIPLE TAGS

6.5-pending-complaint-writ-remitted The Court did not decide restoration or the bill; it remitted the pending Clause 6.5 representation to the Executive Engineer for a reasoned order within three weeks. ¶ 1

clause-6.5-alternate-remedy-to-writ Mandamus to restore the tube-well connection was refused on merits; Clause 6.5 before the Executive Engineer remained the remedy for the billing dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TUBE-WELL ELECTRICITY CONNECTION SHOULD BE RESTORED

The prayer for mandamus to restore supply was not granted on merits; the Court only directed disposal of the pending Clause 6.5 representation. ¶ 1

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE MERITS OF THE CLAUSE 6.5 REPRESENTATION

Left to the Executive Engineer to decide by a reasoned and speaking order. ¶ 1